

MASTER SERVICES AGREEMENT — SECTION 8

Limitation of Liability, Indemnification & Regulatory Compliance

SECTION 8. LIMITATION OF LIABILITY AND INDEMNIFICATION

8.1 Direct Damages Cap. To the maximum extent permitted by applicable law, in no event shall either Party, its affiliates, officers, directors, employees, or agents be liable to the other Party for any direct damages arising out of or related to this Agreement exceeding, in the aggregate, the total fees actually paid or payable by Client to Company in the twelve (12) month period immediately preceding the event giving rise to liability.

8.2 Exclusion of Consequential and Indirect Damages. Neither Party shall be liable to the other Party for any indirect, incidental, consequential, special, punitive, or exemplary damages, including but not limited to loss of profits, loss of revenue, loss of data, operational disruption, or loss of business opportunity, regardless of whether such liability arises in contract, tort (including negligence), strict liability, or otherwise, and even if advised of the possibility of such damages.

8.3 Company Indemnification. Company agrees to defend, indemnify, and hold harmless Client and its respective directors, officers, and employees from and against any third-party claims, demands, suits, losses, liabilities, damages, or costs (including reasonable attorneys' fees) arising out of or resulting from:

1. Any allegation that the Deliverables or Services provided under this Agreement infringe or misappropriate any third-party patent, copyright, trademark, or trade secret;
2. Gross negligence, willful misconduct, or intentional fraud by Company or its personnel; or
3. Material breach of statutory obligations relating to data protection and privacy under Section 12 of this Agreement.

8.4 Client Indemnification. Client agrees to defend, indemnify, and hold harmless Company, its parent entities, affiliates, and employees from and against any third-party claims, liabilities, damages, and expenses arising out of:

1. Client's unauthorized modification or misuse of the Deliverables provided hereunder;
2. Client's breach of applicable federal, state, or international privacy laws or export controls; or
3. Inaccurate, incomplete, or unlawful Data provided by Client for processing under this Agreement.

8.5 Mandatory Dispute & Claims Notice Window: Any claim or action arising under Section 8 must be formally submitted in writing to the opposing Party within one hundred eighty (180) calendar days of the occurrence of the underlying event. Failure to provide written notice within this timeframe shall constitute a full waiver and release of all associated claims.

8.6 Exclusions from Cap. The limitations and exclusions set forth in Section 8.1 and Section 8.2 shall not apply to: (i) liabilities arising under Section 8.3 or 8.4 (Indemnification Obligations); (ii) gross negligence or willful misconduct; or (iii) breach of Section 10 (Confidentiality).

IN WITNESS WHEREOF, the Parties have caused Section 8 of this Legal Agreement to be duly executed by their authorized representatives as of the Effective Date.

COMPANY:

Authorized Signature

Name: _____
Title: Executive Vice President
Date: _____

CLIENT:

Authorized Signature

Name: _____
Title: Chief Legal Officer
Date: _____